



NORTH ATLANTIC MILITARY COMMITTEE
COMITE MILITAIRE DE L'ATLANTIQUE NORD



19 JANUARY 2005

MC 0334/2 (Final)

FINAL DECISION ON MC 0334/2

NATO PRINCIPLES AND POLICIES FOR HOST NATION SUPPORT

1. On 30 Sep 04 the North Atlantic Council approved MC 334/2 (Military Decision). C-M(2000)0056-REV1-AS1 refers.
2. This document supersedes MC 334/1 (Final).

FOR THE MILITARY COMMITTEE:

A handwritten signature in black ink, appearing to read "F. Del Pozo".

F. DEL POZO
Vice Admiral, SPNA
Director
International Military Staff

NOTE: This Final Decision Sheet is part of, and shall remain attached to MC 334/2 (Military Decision) as the top sheet. Page numbering of the completed document is as follows:

MC 0334/2 (Final)	-	Page 1
MC 334/2 (Military Decision)	-	1 Page
MC 334/2	-	12 Pages

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NORTH ATLANTIC MILITARY COMMITTEE
COMITE MILITAIRE DE L'ATLANTIQUE NORD



16 September 2004

MC 334/2 (Military Decision)

SECRETARY GENERAL, NORTH ATLANTIC TREATY ORGANISATION

(THROUGH THE CIVILIAN CO-CHAIRMAN, SENIOR NATO LOGISTICIANS' CONFERENCE)

MILITARY DECISION ON MC 334/2

NATO PRINCIPLES AND POLICIES FOR HOST NATION SUPPORT (HNS)

1. On 30 July 2004 the Military Committee agreed MC 334/2, NATO Principles and Policies for Host Nation Support (HNS), a copy of which is attached at Enclosure 1.
2. MC 334/2 is now forwarded to the North Atlantic Council for consideration and approval.
3. This document clears IMSWM-312-04 and all SDs thereto.

FOR THE MILITARY COMMITTEE:

A handwritten signature in black ink, appearing to read 'F. DEL POZO'.

F. DEL POZO
Vice Admiral, SPNA
Director
International Military Staff

Enclosure MC 334/2 - NATO PRINCIPLES AND POLICIES FOR HOST NATION SUPPORT (HNS)

Copy To SDL Z, IS DPP LOG ELEMENT

Action Officer LtCol W.J. Schulte-Lippert, LA&R, (5628)

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NATO PRINCIPLES AND POLICIES
FOR HOST NATION SUPPORT

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NATO PRINCIPLES AND POLICIES FOR HOST NATION SUPPORT

References

- A. C-M(99)21, The Alliance's Strategic Concept, 29 Apr 99
- B. PR/CP(2002)127, Prague Summit Declaration, 21 Nov 02

1. The Logistics Staff Meeting (LSM) of the Senior NATO Logisticians' Conference (SNLC) established principles and policies for HNS planning, approved by the Military Committee (MC) on 7th March 1994 as MC 334. MC 334 gave to the NATO Commander the responsibility to initiate the HNS planning process and to establish the overall HNS requirements for his forces. Taking into account experiences from NATO operations, the LSM undertook a revision of MC 334, culminating in revised NATO Principles and Policies for HNS, approved by the MC on 20 July 2000 as MC 334/1 and by the North Atlantic Council on 1 September 2000 as C-M(2000)56. The revision took into account Crisis Response Operations (CRO) in which operations are multinational in character, with the likely participation of Partner and other non-NATO nations. It also conferred on the Strategic Commanders (SC) the authority to conclude HNS Memoranda of Understanding (MOU).

2. The Alliance's Strategic Concept articulates NATO's approach to the security challenges in the new century. It requires that the Alliance be able to undertake the full spectrum of its military missions through a common set of Alliance structures and procedures, which reflect its commitment to both collective defence and crisis response. The decisions taken by NATO Heads of State and Government at their Summit in Prague on 21 November 2002 endorsed the development of forces that are flexible, deployable, interoperable and sustainable, and ready to move quickly when and to wherever they are needed. NATO logistic principles and policies were adjusted to reflect these changes in MC 319/2 which was used in the revision of this document.

3. The possibility of deployments of a rapid military response beyond NATO territory has significant implications for NATO HNS policy and planning procedures. In particular, it will be necessary to adopt more rapid and flexible HNS planning mechanisms in order to ensure that HNS arrangements can be put into place as early as possible so that the required support can be assured to the maximum extent possible, consistent with maintaining or enhancing military effectiveness. This revision provides HNS principles and policies that facilitate the development of such mechanisms.

PURPOSE

4. The purpose of this document is to set forth the broad strategic principles and policies for HNS and is for the guidance for NATO and national authorities in the development of HNS concepts, doctrine, structures, directives and procedures.

SCOPE

5. The principles and policies set out in this document define the responsibilities of NATO Commanders, the Sending Nations (SN) and the Host Nation (HN) for HNS. They establish the interface between policy, doctrine and procedures for HNS planning and execution and the relationship with civil-military cooperation (CIMIC).

APPLICABILITY

6. The principles and policies apply to the complete range of NATO operations and exercises during peace, crisis and conflict and include Article 5, Collective Defence, and non-Article 5, Crisis Response Operations. They provide sufficient flexibility for close cooperation with the United Nations (UN), the European Union (EU), the Organisation for Security and Cooperation in Europe (OSCE), non-governmental organisations (NGOs), International Organisations (IO) and Partner nations. They also apply for non-NATO nations when led by NATO.

DEFINITION OF HNS

7. HNS is civil and military assistance rendered in peace, crisis and conflict by a HN to allied forces and organisations which are located on, operating in or transiting through the HN's territory.

INTER-RELATIONSHIPS OF HNS, CIMIC AND CONTRACTING

8. HNS seeks to provide the NATO Commander and the SN with support in the form of materiel, facilities and services including area security and administrative support in accordance with negotiated arrangements between the SN and/or NATO and the HN government. As such, HNS facilitates the introduction of forces into an area of operations by providing essential reception, staging and onward movement support. HNS also may reduce the amount of logistic forces and materiel otherwise required by SN to sustain and re-deploy forces.

9. HNS must not be confused with CIMIC. The purpose of CIMIC is to establish and maintain full cooperation between NATO forces and the civilian population and institutions within a commander's area of operations in order to create the most advantageous civil-military conditions. Cooperation with civilian organisations in the framework of HNS should always be managed in full consultation with appropriate military and civilian authorities of the HN.

10. Contracting is the commercial acquisition of materiel and civil services by SN and/or the NATO Commander for their forces in support of NATO-led operations. Contracting from local resources should not interfere with HNS and should always take into account the essential needs of the local population. Contracting shall, therefore, be coordinated with or through the HN, where possible.

11. In cases where there is no legitimate HN government with whom to coordinate HNS, a SN and/or the NATO Commander, may contract directly with private sources within the HN. It will be especially important in these cases that a system is established by the NATO

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Commander to monitor or coordinate contracts to limit competition for scarce resources and establish HNS priorities when required.

LEGAL ASPECTS OF HNS ARRANGEMENTS

12. Arrangements and agreements concluded between the appropriate national authorities and NATO form the basis of support for HNS arrangements. A Status of Forces Agreement (SOFA), negotiated at the highest level between SN and/or NATO and the HN authorities, governs the status of forces and determines their relationship with the HN. It may contain general provisions regarding support from the HN. Therefore, where it exists, the SOFA may have an impact on HNS and should be taken into account in the development of HNS arrangements.

13. Where a SOFA with a HN does not exist, one must be concluded with the utmost priority. This may not be possible in regard to many nations. In these cases a Transit Agreement will be concluded between NATO HQ and the HN to authorise the transit of allied forces and goods through the HN's territory. The Transit Agreement will include some provisions that make reference to the support needed from the HN but should not attempt to address HNS issues that are more properly addressed in HNS arrangements.

14. An MOU is an instrument to record in a less formal manner specific understandings and obligations and is an expression of the **concurring** [binding] will of the Parties participating in and subscribing to the MOU. Within the context of HNS, the MOU is a written overarching bilateral or multilateral agreed document, which implies an intent or responsibility to support allied forces and organisations. It provides the mutually agreed military-political-legal basis for the development of further implementing documents within the agreed provisions embodied in the MOU.

PRINCIPLES OF HNS

15. **General.** The required mobility, flexibility and multinationality of NATO forces highlight the need for commonly agreed principles of HNS, and the need for the NATO Commander to provide the structure necessary to facilitate the development of HNS arrangements. Moreover, the increasing requirement to take advantage of economies of scale and to more rapidly and effectively implement responsive support concepts dictates that HNS be considered as integral to the logistic planning process and should be addressed in all support plans. In order to realise consistent and effective HNS planning and execution, the following principles will apply:

15.1 **Responsibility.** Nations and NATO authorities have a collective responsibility for HNS across the spectrum of NATO-led operations. This responsibility encourages nations and NATO to co-operatively plan for and share the provision of HNS to support the force effectively and efficiently with each nation bearing the ultimate responsibility for ensuring the provision of support for its forces .

15.2 **Provision.** Nations individually, by co-operative arrangements or collectively with NATO must ensure, the provision of adequate resources to support their forces during peace, crisis and conflict. When available, HNS is a fundamental supplement to support for deployed forces and once the MOU is concluded, will be provided by the HN to the greatest

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extent possible on the basis of national legislation, national priorities, and the actual capabilities of the HN.

15.3 **Authority.** The NATO Commander has the authority to establish requirements for HNS, to prioritise the provision of HNS to assigned forces and to initiate the HNS planning process including negotiations. When delegated by the SC, the Commander also has the authority to conclude HNS arrangements for NATO multinational HQs and other common-funded entities. These authorities also apply to non-NATO Commanders of a multinational force participating in a NATO led operation.

15.4 **Coordination and Cooperation.** For HNS planning and execution, the coordination and cooperation between NATO and national authorities is essential for reasons of operational effectiveness, efficiency and the avoidance of competition for resources. It must be carried out at appropriate levels and may include non-NATO nations, and other relevant organisations as required.

15.5 **Economy.** Planning and execution of HNS must reflect the most effective and economic use of resources available to fulfil the requirement.

15.6 **Visibility.** Information concerning HNS arrangements in support of allied forces and organisations should be available to the appropriate NATO Commander and to SN.

15.7 **Reimbursement.** HN should not derive profit from the official activities of NATO HQ or forces conducting or participating in operations, exercises conferences or similar events on their territory. Reimbursement for HNS will be agreed between the HN and the SN and/or the NATO Commander as appropriate.

HNS POLICIES

16. HNS policies broadly define the process and the role of the parties involved in HNS.. The HNS policies are segregated into the following categories:

- Process Policies
- HNS Planning
- HNS Development
- Reimbursement
- Quality Assurance
- Policies specific to the NATO Commander;
- Policies specific to SN; and
- Policies specific to HN.

16.1 More detailed doctrine and procedural guidance and other useful information may be found in the references at Annex B.

17. Process Policies

17.1 **HNS Planning**

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17.1.1 HNS planning is an integral part of logistic planning, but as a key component of operational planning, it requires multidisciplinary participation of all the planning staff.

17.1.2 HNS planning will be as detailed as possible to enable the HN to evaluate and respond to requirements. However, the variety of deployment options may also require that a contingency approach be taken towards HNS planning.

17.1.3 HN, SN and the NATO Commander are responsible for HNS planning and development. The conclusion of the HNS MOU is the responsibility of the HN and the NATO Commander.

17.1.4 The NATO Commander must ensure close coordination occurs during HNS planning between the SN, once they are identified, and the HN. This coordination will be in accordance with established doctrine and procedures in order to ensure that the MOU are properly completed.

17.1.5 Planning procedures should be standardised to the extent possible to ensure an effective and flexible response to any operational need. These should be kept under review to incorporate lessons identified from future exercises and operations.

17.2 Development of HNS Arrangements

17.2.1 Where possible, HNS arrangements should be concluded at the earliest opportunity in the planning process.

17.2.2 In terms of efficiency, NATO coordinated HNS arrangements should be pursued where appropriate.

17.2.3 As far as possible, Standing HNS MOU supporting a broad range of potential operations should be concluded.

17.2.4 The NATO Commander should be invited to participate in follow-on bilateral HNS negotiations between sending and HN in order to promote cooperation and assist where necessary.

17.2.5 Nations and the NATO Commander should ensure that adequate guidance is provided to non-NATO nations when developing HNS arrangements.

17.2.6 The NATO Commander's logistic staff is responsible for the development of HNS arrangements. Because of the inter-relationships between HNS, CIMIC, contracting and other functions, and because of the legal and financial implications of HNS arrangements, close coordination will have to be maintained with all relevant staff from the outset.

17.2.7 The NATO Commander should also be made aware of other non-NATO HNS arrangements that are in support of or may impact on the conduct of NATO-led operations.

17.3 Reimbursement for HNS

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17.3.1 HNS may be rendered to allied forces and organisations on a reimbursable basis, to include direct financial reimbursement, replacement in kind, equal value exchange and may include provision at no cost. Financial reimbursement, where appropriate, will be effected from either national, shared multinational or NATO common funds. In principle:

17.3.2 HN should not derive profit from the provision of HNS;

17.3.3 support for SN forces will be funded through SN funds which can only be obligated by the SN itself on the basis of relevant arrangements to be concluded as an integral part of HNS planning;

17.3.4 support for NATO common funded bodies (including headquarters, commands and agencies) will be funded through NATO common funds. In addition, selected theatre-level support may be funded from NATO common funds. These arrangements will be approved in advance by the relevant NATO resource committee and obligated by the appropriate NATO Commander through applicable HNS implementation documentation to be finalised within the HNS planning process; and

17.3.5 support for multinational headquarters and units that are not NATO common funded will be paid for by the normal funding source for that headquarters or unit.

17.4 Quality Assurance.

17.4.1 Quality standards for services and materiel should be properly addressed in all HNS arrangements. This is of particular importance with regard to food, water and medical support.

18. Policies Specific to the NATO Commander

18.1 The NATO Commander shall negotiate and conclude HNS arrangements for NATO multinational headquarters and when authorised, for designated multinational units and selected theatre-level support. SN are encouraged to take advantage of these arrangements by acceding to the HNS MOU.

18.2 For each operational plan for which HNS is required, the NATO Commander shall establish a process to facilitate negotiations between HN and SN and/or subordinate NATO Commanders in accordance with NATO HNS doctrine and procedures.

18.3 The NATO Commander shall identify HNS requirements and has to coordinate and prioritise HNS requirements and the provision of HNS in consultation with nations.

18.4 The NATO Commander shall provide sending and HN with the necessary details, including points of contact, for proper HNS planning and execution.

18.5 The NATO Commander is authorised to request reports on HNS assets designated and agreed by HN to support the forces under their command. Conversely, the NATO Commander is required to inform SN on the availability of HNS assets.

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18.6 If NATO common funding or appropriate exercise funding is approved, the NATO Commander in conjunction with the HN and prior to the receipt of HNS, will detail the funding arrangements to be applied for the payment of HNS for the multinational headquarters, designated multinational units and the selected theatre- level support.

19. Policies Specific to SN

19.1 SN are encouraged to accede to the HNS MOU concluded by the SC and the HN. Any outstanding concerns could then be addressed as part of the accession process. SN may choose to negotiate their own **non NATO** bilateral MOU with the HN.

19.2 SN shall participate in the planning and execution processes in order to conduct effective HNS.

19.3 SN shall identify as early as possible to the HN and to the NATO Commander their HNS requirements and also of significant changes as they occur.

19.4 SN shall report the status of HNS negotiations to the appropriate NATO Commander.

19.5 Ultimately, SN are responsible, prior to the receipt of HNS, to make the necessary arrangements for reimbursement.

20. Policies Specific to HN

20.1 HN shall advise SN and appropriate NATO Commander of their capability to provide HNS against specific requirements and of significant changes in capability as they occur. Furthermore, HN are encouraged to identify other HNS capabilities in order to assess their potential to provide additional support. The NATO Capability Catalogue for HNS may facilitate this.

20.2 HN retain control over their own HNS resources, unless control of such resources is released.

20.3 HN shall participate in the planning and execution processes in order to conduct effective HNS.

20.4 HN shall report the status of HNS negotiations to the appropriate NATO Commander.

20.5 HN shall determine the cost standards to be applied for cost calculations for HNS.

20.6 HN should ensure that, as far as possible, their bilateral HNS arrangements and associated plans are harmonised with the requirements of NATO operational planning.

20.7 HN should ensure the required cooperation and coordination between their civilian and military sectors in order to make the best use of limited HNS resources.

IMPLEMENTATION

21. The SC are to translate these principles and policies into their concepts, doctrine, directives and procedures in agreement with nations. NATO and Partner nations are invited and encouraged to adapt their concepts, doctrine and procedures accordingly.

ANNEXES

- A Definitions
- B References Useful to HNS Planning

DEFINITIONS

The following terms used in this document are those associated with the HNS planning process.

Capability Catalogue: An electronic database within Logistic Functional Area Service (LOGFAS) providing information with respect to a HN's facilities, infrastructure, and resources that may be made available to the NATO Commander in support of his forces. The information will serve for planning purposes only.

Civil-Military Cooperation (CIMIC) The resources and arrangements which support the relationship between NATO Commanders and the national governments and civil populations in an area where NATO military forces are or plan to be employed. Such arrangements include cooperation with non-governmental or international agencies, organisations and authorities. (AAP-6) (MC 411/1).

Co-ordinating Authority: The authority granted to a commander or individual assigned responsibility for co-ordinating specific functions or activities involving forces of two or more countries or commands, or two or more services or two or more forces of the same service. He has the authority to require consultation between the agencies involved or their representatives, but does not have the authority to compel agreement. In case of disagreement between the agencies involved, he should attempt to obtain essential agreement by discussion. In the event he is unable to obtain essential agreement he shall refer the matter to the appropriate authority. (AAP-6)

Host Nation: A nation which by agreement:

1. receives forces and material of NATO or other nation operating on/from or transiting through its territory;
2. allows materiel and/or NATO organisations to be located on its territory; and /or
3. provides support for these purposes. (AAP-6)

Host Nation Support (HNS): HNS is civil and military assistance rendered in peace, crisis or conflict by a HN to NATO and/or other forces and NATO organisations which are located on, operating on/from, or transiting through the HN's territory. (AAP-6)

Host Nation Support (HNS) Arrangements: Those documents which detail the support, political, legal and/or financial arrangements agreed upon by national and/or NATO authorities and which are necessary to provide HNS to NATO-led operations and exercises. These documents may include, but are not limited to, Memoranda of Understanding (MOU) and their subordinate technical and implementing arrangements. The HNS MOU may be negotiated as a result of a specific NATO event or NATO led operation. Or it may be negotiated in advance as a Standing HNS MOU to be used for future events or NATO led operations.

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Logistics: The science of planning and carrying out the movement and maintenance of forces. In its most comprehensive sense, the aspects of military operations which deal with:

1. Design and development, acquisition, storage, movement, distribution, maintenance, evacuation and disposition of materiel;
2. Transport of personnel;
3. Acquisition or construction, maintenance, operation and disposition of facilities;
4. Acquisition or furnishing of services; and
5. Medical and health service support. (AAP-6)

Memorandum of Understanding (MOU): Within the context of HNS, a written overarching bilateral or multilateral agreed document which implies an intent or responsibility to support allied forces and organisations. It is normally signed between SCs and/or a SN and a HN. It provides the mutually agreed military-political basis for the development of subordinate implementing documents.

NATO Commander: A military commander in the NATO chain of command. (AAP-6)

Non-NATO Commander: A military commander of a non-NATO nation who participates, within the chain of command, in a NATO led operations or in a operation where NATO assets are used.

Sending Nation: A nation [or other element] deploying its forces, supplies and/or national components of multinational forces and requesting the use of HN logistic and other support during transit through or employment on the HN's territory.

Status of Forces Agreement (SOFA): An agreement whereby the States parties to the Agreement define in advance the rights and obligations, privileges, immunities and facilities which the forces and their members will enjoy when present on the territory(ies) of another State(s) party(ies) to the Agreement.

[Strategic Commander (SC): SCs are Supreme Allied Commander Atlantic (SACLANT), and Supreme Allied Commander Europe (SACEUR). (AAP-6)]

Strategic Command (SC): The command organisation at the highest level of the NATO military command structure. The SCs are Supreme Allied Command for Transformation (SACT) and Supreme Allied Command for Operations (SACO), the headquarters are HQ SACT and SHAPE, respectively.

Transit Agreement: An agreement whereby the States parties to the Agreement define in advance the rights and obligations, privileges, immunities and facilities which the forces, their members and goods will enjoy when present on or transiting through the territory(ies) of another State(s) party(ies) to the Agreement. A Transit Agreement may, in general terms, serve as a SOFA however, a SOFA, in principle, will contain more defined and refined provisions.

REFERENCES USEFUL TO HNS PLANNING

1. The following referenced NATO documents and directives are useful in the conduct of HNS:

- MC 319/2 (Final), NATO Principles and Policies for Logistics, 28 May 04
- MC 326/2 (Final), NATO Principles and Policies of Operational Medical Support, 07 Apr 04
- MC 327/2 (Final), NATO Military Policy for Non-Article 5 Crisis Response Operations, 29 Aug 01
- MC 336/2 (Final), NATO Principles and Policies for Movement and Transportation, 15 Mar 02
- MC 411/1 (Final), NATO Military Policy on Civil-Military Cooperation, 17 Jul 01
- AJP-4(A), Allied Joint Logistic Doctrine, Dec 03
- AJP-4.5, Allied Joint Host Nation Support Doctrine and Procedures, Sep 01

2. The following documents are other NATO documents useful for operational planning.

MC 55/4 (Final), NATO Logistic Readiness and Sustainability Policy, 14 Jan 03

MC 133/3 (Final), NATO's Operational Planning System, 28 Aug 00

MC 477 (Final), Military Concept for the NATO Response Force, 18 Jun 03

AJP-9, NATO Civil-Military Co-Operation (CIMIC) Doctrine, Jul 03